



**U.S. Department of Justice
Federal Bureau of Prisons
Field Acquisition Office**

346 Marine Forces Drive
Grand Prairie, TX 75051

**Justification for Other than Full and Open Competition (JOFOC)
FCI Big Springs**

Pursuant to the Federal Acquisition Regulations (FAR) Subpart DEVIATION 6.103-1(b), the Federal Bureau of Prisons (BOP) has determined the procurement of Vocational Training Program for the Federal Correctional Institution (FCI), (hereinafter referred to as "institution"), located in Big Springs, Texas 79720 meets the criteria for other than full and open competition. The agency has further determined that only one responsible source is capable of providing these services, and that awarding the contract to this source is necessary to prevent serious injury, financial loss, or other significant harm to the Government. This limitation on competition is justified as follows:

1. FAR DEVIATION 6.104-1(a)(1): Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for other than full and open competition."

Agency: Department of Justice

Contracting Activity: Federal Bureau of Prisons
FCI Big Springs
1900 Simler Ave
Big Springs, TX 79720

This document is a Justification for Other Than Full and Open Competition (JOFOC).

2. FAR DEVIATION 6.104-1(a)(2): Nature and/or description of the action being approved.

This action seeks approval for the acquisition and continuation of Vocational Training Program with Howard College. As the incumbent contractor, Howard College, has agreed to continue providing these services based on the need and rates will be similar to its prior contract rates, through monthly Firm-fixed-unit-price purchase orders until a new contract can be competitively awarded. This interim acquisition is essential to maintain uninterrupted services for the inmate population pending award of a new contract.

The Bureau Of Prisons is actively pursuing the solicitation of the Vocational Training Program agreement. The request for a new contract action is currently pending and eventually an agreement/ contract will be made, further justification for other than full and open competition will no longer be necessary.

3. FAR DEVIATION 6.104-1(a) (3): A description of the supplies or services required to meet the agency's needs (including the estimated value).

As part of the mission of the institution, Vocational Training Program are provided to the AIC population. Vocational Training in a correctional setting is very important to increase employability after release from prison, to lower the likelihood of recidivism, and to help reintegration back into society upon release. These services are determined essential to the Federal Correctional Institution. Estimated value is \$50,000.

Due to the urgent nature of Vocational Training Program, any delay in contract award would disrupt the provision of Vocational Training Program is incompatible with agency needs.

4. FAR DEVIATION 6.104-1(a) (4): An identification of the statutory authority permitting other than full and open competition.

The authority for this action is granted under 41 U.S.C. § 3304(a) (1), as implemented by FAR DEVIATION 6.103-1, allowing for award for "Agencies may contract without providing for full and open competition when the supplies or services required by the agency are available from only one responsible source and no other type of supplies or services will satisfy agency requirements."

5. FAR Deviation 6.104-1(a) (5): A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

While the request for contract action is pending solicitation and award, Vocational Training Program is critical. The immediate availability of this service is crucial to prevent any disruption to ensure the orderly operation of the institution.

The Government has determined that it is in its best interest to continue utilizing the services of Howard College, which can provide the required services without delay. Howard College cleared and established Vocational Training Program meets the institution's Educational Needs. The company has provided services to the institution before through an established network of Instructors.

6. FAR DEVIATION 6.104-1(a) (6): A description of efforts made to ensure that offers are solicited from as many potential sources as possible, including whether a notice was or will be publicized as required by Part 5 and, if not, which exception under Part 5 applies.

A notice will be publicized as the action is over \$25,000.

7. FAR DEVIATION 6.104-1(a) (7): A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

Howard College has agreed to continue providing services at rates consistent with the Rates Provided in last contact option, which were established under competitive conditions and deemed fair and reasonable by FAR DEVIATION 15.404-1(b) (1).

The Contracting Officer (CO) has analyzed the current market trend by comparing the rates against historical prices paid for the same services in

accordance with FAR DEVIATION 15.404-1(b)(2). Continuing services with Howard College during this interim period is in the Government's best interest.

- 8. FAR DEVIATION 6.104-1(a)(8): A description of the market research conducted, and the results or a statement of the reason market research was not conducted.**

Market research has not been conducted for the provision of Vocational Training Program but will be part of the new solicitation and award.

- 9. FAR DEVIATION 6.104-1(a)(9): Any other facts supporting the use of other than full and open competition.**

No additional supporting facts are identified.

- 10. FAR DEVIATION 6.104-1(a)(10): A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.**

No other sources with the ability to provide services immediately with no lapse in service have expressed written interest in this acquisition.

- 11. FAR DEVIATION 6.104-1(a)(11): A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.**

This interim acquisition is necessary pending solicitation and award of a new contract for Vocational Training Program.

The subsequent requirement will be publicly advertised via the Government-wide point of entry. Experience indicates that a single source provider is currently most beneficial to the Agency and Adult-in-custody population. Once the new Contract is competitively awarded, justification for other than full and open competition will no longer be required.

- 12. FAR DEVIATION 6.104-1(a)(12): Contracting officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief.**

In accordance with FAR 6.104-1(a)(12), I hereby certify that this justification is accurate and complete to the best of my knowledge and belief. I further certify that this request is not the result of a lack of planning, or a desire to expend funds while those funds are still available.

Submitted by:

Michael Blaisdell
Contracting Officer
Field Acquisition Office